The EB-2 NIW Dhanasar Framework Decoded

How to Self-Petition for a U.S. Green Card Without an Employer Sponsor

- You do NOT need an employer offer or labor certification (PERM) to qualify.
- Established by USCIS Administrative Appeals Office in Matter of Dhanasar (2016).
- Allows professionals with advanced degrees or exceptional ability to petition.
- Direct path to permanent residency for you and your immediate family.

■ KEY TAKEAWAY / ACTION:

Qualifying fields include AI, Health, Automation, Energy & Supply Chain.

Prong 1: Substantial Merit & National Importance

Proving the Broader Impact of Your Proposed Endeavor

- **Substantial Merit:**
  Endeavor must have tangible value in science, business, or tech.
- **National Importance:**
  Impact must extend beyond your immediate employer.
- **Economic & Societal Focus:**
  Ties to critical federal initiatives (NSF, NIH, White House AI Executive Orders) strengthen this prong dramatically.

KEY TAKEAWAY / ACTION:

Frame your endeavor around a national challenge, not just your daily job.

Prong 2: Well-Positioned to Advance the Endeavor

Demonstrating Your Track Record and Scientific/Technical Standing

- **Academic Credentials:**
  Advanced degree (Master's, PhD) or Bachelor's + 5 years.
- **Objective Metric Proof:**
  Citations, peer-reviewed publications, or software repositories.
- **Independent Evidence:**
  Letters of recommendation from independent experts.
- **Commercial Traction:**
  Grants, investor funding, patents, or enterprise leadership.

KEY TAKEAWAY / ACTION:

Independent recommendation letters carry 3x more weight than colleagues.

Prong 3: The Balancing Test (Waiving PERM)

Why It Benefits the United States to Waive the Job Offer Requirement

- **Urgency:**
  The national importance makes the 18-month PERM test impractical.
- **Self-Directed Innovation:**
  Your endeavor requires independence and agility.
- **National Benefit:**
  U.S. gains more from your presence than from protecting local workers.

KEY TAKEAWAY / ACTION:

Emphasize how delaying your research harms national competitiveness.

Top 4 Reasons USCIS Issues RFEs for NIW

Avoid the Most Common Petition Drafting Mistakes

- **Mistake 1:**
  Confusing personal career success with National Importance.
- **Mistake 2:**
  Relying solely on letters from personal supervisors/professors.
- **Mistake 3:**
  Failing to clearly define a concrete future Proposed Endeavor.
- **Mistake 4:**
  Generic legal citations without customized technical exhibits.

■ KEY TAKEAWAY / ACTION:

A well-structured 25-page petition letter eliminates 90% of RFE risks.

The Step-by-Step NIW Preparation Timeline

From Preliminary Self-Audit to Form I-140 Adjudication

- **Month 1:**
  Endeavor definition & academic citation/portfolio audit.
- **Month 2:**
  Securing 4-6 independent and dependent expert opinion letters.
- **Month 3:**
  Drafting comprehensive legal brief and compiling exhibits.
- **Month 4:**
  Filing Form I-140 with Premium Processing (45 business days).

■ KEY TAKEAWAY / ACTION:

Test your profile on our Dhanasar Evaluator: uscareersolutions.online

Are You Ready to File EB-2 NIW?

Your Preliminary Document & Evidence Checklist

- Advanced Degree Evaluated (or verified 5 years progressive experience).
- Clear 1-sentence Proposed Endeavor aligned with federal priorities.
- Minimum 3-5 published works, patents, or measurable enterprise metrics.
- Documented independent expert network for advisory testimonials.

■ KEY TAKEAWAY / ACTION:

Free Interactive Diagnostic: uscareersolutions.online/tools/eb2-niw